

02:00 PM **LINE 10**

25-CLJ-04491

RICHARD KASS VS. ELENA SUAREZ

RICHARD KASS
ELENA SUAREZ

ANDREW B. PETERS
PRO SE

Defendant's Motion to Set Aside Default

TENTATIVE RULING:

Defendant Elena Suarez's Motion to Set Aside Entry of Default is **DENIED**.

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect; application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. (Code Civ. Proc., § 473 subd. (b).) The six month period begins to run when a default, not the default judgment, is entered. (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 59-60.)

Here, default was entered against defendant on July 28, 2025, and defendant's Motion to Set Aside Default was filed on April 6, 2026, over seven months later. Defendant's Motion is therefore untimely and is not eligible for relief under Code of Civil Procedure, section 473 subdivision (b).

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

July 15, 2026 LAW AND MOTION CALENDAR
JUDGE NICOLE S. HEALY, DEPARTMENT 28

02:00 PM **LINE 11**

CLJ483991

GCFS INC. VS. VALWAYNE BRINAS ET AL.

GCFS, INC., A CALIFORNIA CORPORATION
VALWAYNE V. BRINAS

BRIGHTON K. HUSHING-KLINE

Assignee Absolute Resolutions Investments, LLC's Hearing on Defendant's Claim of Exemption

TENTATIVE RULING:

The creditor has withdrawn its opposition and this motion is vacated.



POSTED: 3:00 PM